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| <p><b>106</b></p> | <p><b>Gomez vs. Black Lion Farms, LLC, a California limited liability company</b></p> <p><b>2024-01418681</b></p> | <p><b>1. Petition to Compel Arbitration</b><br/> <b>2. Case Management Conference</b></p> <p>Defendants’ unopposed Motion to Compel Arbitration is GRANTED. Plaintiff is ordered to arbitrate his individual claims. The class claims are dismissed without prejudice. The case is otherwise stayed pending the outcome of arbitration.</p> <p><b>An ADR Review hearing is scheduled for May 20, 2027, at 2PM in Department CX102.</b> The parties are ordered to file a joint status conference report at least 16 court days prior to the hearing.</p> <p><u>Existence of Agreement to Arbitrate</u></p> <p>The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. Little v. Pullman (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. Id.</p> <p>While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal. App. 5th 158, 164–67. If the moving party meets its initial prima facie burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, in the third step, the moving party must present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. Gamboa, supra, 72 Cal. App. 5th at 164–67.</p> <p>Defendants have met their initial burden of demonstrating the existence of an arbitration agreement between the parties. Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413; Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972. Defendant presents evidence, through its Senior Director of Human Resources of Gold Flora Corporation and its subsidiaries, including Black Lion Farms, LLC, Josie Smith, that plaintiff electronically signed the “{Black Lion Farms, LLC.} ARBITRATION AGREEMENT” (the “Agreement”) on 08-09-2023. ROA 42 Exs. 1-2. Since defendants satisfied the initial burden of demonstrating that a valid arbitration agreement exists, the burden shifts to plaintiff to challenge the authenticity of the agreement.</p> <p>Plaintiff makes no such challenge. The court therefore finds an agreement to arbitrate exists.</p> |
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|  |  | <p><u>Relevant Terms</u></p> <p>The Agreement provides for the mutual agreement to arbitrate “any controversy or claim arising out of or relating to your employment relationship with Black Lion Farms, LLC. or the termination of that relationship, except those claims specifically excluded from arbitration by federal and state law...” ROA 42 Ex. 2 ¶ 1. The Agreement contains express class and representative action waivers. Id. ¶ 1(g).</p> <p>The court finds the Agreement covers the claims asserted by plaintiff.</p> <p><u>Federal Arbitration Act</u></p> <p>Defendant has presented undisputed evidence it is engaged in interstate commerce. ROA 42 ¶ 14. Plaintiff’s lack of opposition concedes the issue. The court thus finds the FAA applies.</p> <p><u>Enforceability</u></p> <p>In OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “‘generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening’ the FAA’ or California law.” Id. at 125; accord AT&amp;T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.</p> <p>“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 113. 113.</p> <p>To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1243; see also OTO, L.L.C., supra, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” Armendariz, supra, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. Sanchez v. Carmax Auto Superstores California, LLC (2014) 224 Cal.App.4th 398, 402.</p> |
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|     |                                                                                        | <p>The Agreement provides it “is a condition of employment.” ROA 42 Ex. 2 ¶ 1. The evidence thus weighs in favor of finding the Agreement is a contract of adhesion and is thus procedurally unconscionable. Sanchez v. Carmax Auto Superstores California, LLC (2014) 224 Cal.App.4th 398. However, the fact that an agreement is adhesive is not, by itself, sufficient to render it unenforceable. Malone v. Superior Court (2014) 226 Cal.App.4th 1551, 1561; Samaniego v. Empire Today, LLC (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause).</p> <p>Irrespective of any degree of procedural unconscionability, however, the Agreement is fully enforceable on its terms because the court finds it is not substantively unconscionable in any respect.</p> <p>Accordingly, plaintiff is ordered to arbitrate his individual claims against defendant. It is well settled that class action waivers are enforceable, as here, in arbitration agreements governed by the FAA. Epic Systems Corp. v. Lewis (2018) 138 S. Ct. 1612, 1616; Iskanian v. CLS Transportation Los Angeles, LLC (2014) 59 Cal. 4th 348, 364. Under the FAA, when an arbitration agreement does not authorize class arbitration of disputes, case law provides for the dismissal without prejudice of the class claims. Epic Systems Corp. v. Lewis (2018) 138 S.Ct. 1612; Stolt-Nielsen S.A. v. AnimalFeeds Int’l Corp. (2010) 559 U.S. 662, 686; Kinecta Alternative Financial Solutions, Inc. v. Superior Court (2012) 205 Cal.App.4th 506, 510-511. Both the FAA and California law provide for a stay of proceedings pending the outcome of arbitration. 9 U.S.C. § 3; Code Civ. Proc., § 1281.4.</p> <p>Defendants to give notice.</p> |
| 107 | <p><b>Kornievsky vs. Smith Linden &amp; Basso, LLP</b></p> <p><b>2013-00635667</b></p> | <p><del>1. Motion for Discovery Sanctions (ROA 2359)</del></p> <p><b>2. Motion to Compel Production (ROA 2363)</b></p> <p>Defendants Smith Linden &amp; Basso, LLP; Allen L. Basso; and Allen A. Basso (“Basso Defendants”)’s Motion to Compel Plaintiffs Further Responses to Requests for Production of Documents, Set One is <b>GRANTED IN PART and DENIED IN PART.</b></p> <p>The parties previously participated in an Informal Discovery Conference (IDC) before this Court on 3/27/2026. After the IDC, the Court issued the following minute order, in relevant part:</p> <p style="padding-left: 40px;">The Court reviewed the parties joint IDC statement and met with the parties.</p> <p style="padding-left: 40px;">The instant discovery dispute involves Plaintiffs’ RFPs and Defendants’ (Allen Basso and SLB) RFPs, ROGs and RFAs. The Court explained its view that the discovery at issue was permissible and reasonably calculated to lead to admissible</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |